

HEADNOTE

“1. The scope of R. 263 RoP is not limited to the main proceedings. It also applies to applications for provisional measures. The applicant may also apply for leave to change its claim or to amend its case.

2. If the applicant adds a feature to its claims which was previously only "alternatively" claimed, this narrows the scope of a possible preliminary injunction or other preliminary measures. Embodiments which satisfy all the other features but not the now added feature are no longer covered by a possible preliminary injunction. This is therefore a limitation of the claim. If this limitation is unconditional, R. 263.3 RoP applies.”

COURT

Local Division in Düsseldorf

PROCEEDINGS

Application for provisional measures

PATENT

EP 3 320 602 B1

ROTARY ELECTRIC MACHINE
PROVIDED WITH A RESERVOIR OF
LUBRICANT FOR LUBRICATING A
ROLLING BEARING AND FOR
COOLING THE MACHINE

KEYWORDS

Leave to change the claim

application for provisional measures

limitation of a claim

unconditionally limitation

scope of R. 263 RoP

motions

features alternatively

Rule 263 Leave to change claim or amend case

SUMMARY

The Local Division in Düsseldorf ruled on an application for provisional measures. The patent at issue relates to a rotary electric machine. This machine has a lubricant reservoir for cooling and bearing lubrication. According to the headnotes of the decision, Rule 263 RoP applies beyond main proceedings. It also applies to applications for provisional measures. This means applicants may seek leave to change claims in such proceedings. Furthermore, applicants may seek leave to amend their case. When an applicant adds a feature that was previously claimed only alternatively, the claim scope narrows. As a result, embodiments lacking the newly added feature fall outside any potential preliminary injunction. This constitutes a claim limitation subject to Rule 263.3 RoP when the limitation is unconditional.